

D. White

Date: 2-16-2012

Risk Review

CITY CONTRACT #5801

GENERAL CONTRACT BETWEEN

Associated Legal Group, LLC, and the City of Cheyenne

By: BT
Date: 2-15-12

1. **Parties.** The parties to this Contract are Associated Legal Group, LLC, (Contractor), whose address is 1807 Capitol Ave., Suite 203 Cheyenne, WY 82001 and the City of Cheyenne, (City) whose address is 2101 O'Neil Ave., Cheyenne, Wyoming, 82001.
2. **Purpose of Contract.** The purpose of this contract is to secure the legal services of the Contractor as needed for the acquisition of property for the East Pershing Boulevard Reconstruction Project (Phase 4).
3. **Term of Contract and Required Approvals.** This Contract is effective when all parties have executed it and all required approvals have been granted. The term of the Contract is from January 6, 2012 to completion of legal services for the project or until one of the parties terminates the contract.
4. **Payment.** The City agrees to pay the Contractor for the services described herein at a rate of \$220 per hour. Payment shall be made monthly upon submission of monthly invoices. Except as otherwise provided in this Contract, the City shall pay ordinary costs and expenses incurred by Contractor in connection with its performance of legal services under this Contract, provided however, that the Contractor shall provide advance written notice to the City of any and all contracts entered into by Contractor with third parties for the provision of expert witness services, engineering services, surveying services, appraisal services, and other litigation support services. No third party fees, costs, or expenses shall be incurred by Contractor without the express prior written approval of the City.
5. **Responsibilities of Contractor.** The services to be provided by Contractor shall include legal services associated with and in support of the acquisition of property for City. These services shall include but are not limited to, counsel and advice, preparation of legal documents and correspondence, preparation and appearance in court proceedings.
6. **General Provisions**
 - A. **Amendments.** Any changes, modifications, revisions, or amendments to this Contract which are mutually agreed upon by the parties to this Contract shall be incorporated by written instrument, executed and signed by all parties to this Contract.
 - B. **Applicable Law/Venue.** The construction, interpretation, and enforcement of this Contract shall be governed by the laws of the State of Wyoming. The Courts of the State of Wyoming shall have jurisdiction over this Contract and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming. The parties intend and agree that the City does not waive sovereign immunity by entering into this Contract and specifically retains immunity and all defenses available to it as a sovereign pursuant to applicable law.

- C. **Assignment/Contract Not Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Contract without the prior written consent of the other party. The Contractor shall not use this Contract, or any portion thereof for collateral for any financial obligation without the prior written permission of the City.
- D. **Audit/Access to Records.** The City and its representatives shall have access to any books, documents, papers, and records of the Contractor which are pertinent to this Contract.
- E. **Availability of Funds.** Payment by the City is conditioned upon the availability of government funds for the payment of this obligation. If funds are not available for the continuance of the services performed by the Contractor, the Contract may be terminated by City at the end of the period for which the funds are available. The City shall notify the Contractor at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the City in the event this provision is exercised, and the City shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section. In addition to the submission of monthly invoices, the Contractor shall notify the City, in writing, when the total cost of fees and expenses to be paid under this Contract exceeds the sum of Thirty-Thousand Dollars (\$30,000.00). The City must receive the approval of its governing body with respect to the payment of fees and expenses in an amount which exceeds Thirty-Five Thousand Dollars. (\$35,000.00).
- F. **Award of Related Contracts.** The City may undertake or award supplemental or successor contracts for work related to this Contract. The Contractor shall cooperate fully with other contractors and the City in all such cases.
- G. **Compliance with Laws.** The Contractor shall keep informed of and comply with all applicable federal, state, and local laws and regulations in the performance of this Contract.
- H. **Confidentiality of Information.** All documents, data compilations, reports, computer programs, photographs, and any other work provided to or produced by the Contractor in the performance of this Contract shall be kept confidential by the Contractor unless written permission is granted by the City for its release.
- I. **Entirety of Contract.** This Contract, consisting of six (6) pages, represent the entire and integrated Contract between the parties and supersedes all prior negotiations, representations, and agreements, whether written or oral.
- J. **Extensions/Renewals.** Nothing in this Contract shall be interpreted or deemed to create an expectation that this Contract will be extended beyond the term described herein. Any extension of this Contract shall be initiated by the City and shall be accomplished through a written amendment between the parties entered

into before the expiration of the original Contract or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Contract. Any amendment to extend this Contract shall include, but not necessarily be limited to: an unambiguous identification of the Contract being extended; the term of the extension; the amount of any payment to be made during the extension, or a statement that no payment will be made during the extension; a statement that all terms and conditions of the original Contract shall, unless explicitly delineated in the exception, remain as they were in the original Contract; and, if the duties of either party will be different during the extension than they were under the original Contract, a detailed description of those duties.

- K. **Force Majeure.** Neither party shall be liable for failure to perform under this Contract if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays. This provision shall not be effective unless the failure to perform is beyond the control and without the fault or negligence of the nonperforming party. The parties intend and agree that the City does not waive sovereign immunity by entering into this Contract and specifically retains immunity and all defenses available to it as a sovereign pursuant to applicable law.
- L. **Independent Contractor.** The Contractor shall function as an independent contractor for the purposes of this Contract and shall not be considered an employee of the City for any purpose. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Contract and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Contract. Nothing in this Contract shall be interpreted as authorizing the Contractor or its agents and/or employees to act as an agent or representative for or on behalf of the City or to incur any obligation of any kind on behalf of the City. The Contractor agrees that no health/hospitalization benefits, workers' compensation, and/or similar benefits available to City employees will inure to the benefit of the Contractor or the Contractor's agents and/or employees as a result of this Contract.
- M. **Notices.** All notices arising out of, or from, the provisions of this Contract shall be in writing and given to the parties at the address provided under this Contract, either by regular mail, facsimile, e-mail, or delivery in person.

- N. **Insurance Requirements:** The Contractor shall provide proof of the following insurance coverage:

Professional Liability Insurance

The Contractor shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$2,000,000.00 to protect the City from any and all claims arising from the Contractor's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

(1) Contractor shall, concurrently with the execution of this Contract, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and

(2) In the event the Contractor's services extend into a future policy period, the Contractor shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Contractor will provide services under this Agreement; and

(3) Contractor shall maintain said "claims made" coverage for a period of two (2) years following the last date that Contractor has provided services under this Agreement; and

(4) In the event the Contractor or his insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Contractor shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than two (2) years following the last date that Consultant has provided services under this Agreement.

- O. **Ownership of Documents/Work Product.** Except as provided in Title 29 of the Wyoming Statutes relating to the assertion of liens by attorneys at law, all documents, reports, records, materials, and data of any kind resulting from performance of this Contract are at all times the property of the City.

- P. **Patent or Copyright Protection.** The Contractor recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Contractor or its subcontractors will violate any such restriction. The Contractor shall defend and indemnify the City for any violation or alleged violation of such patent, trademark, copyright, license, or other restrictions.

- Q. **Prior Approval.** This Contract shall not be binding upon either party, no services shall be performed under the terms of this Contract, and the City Treasurer shall not draw warrants for payment on this Contract, until this Contract has been reduced to writing and approved as to form by the City.
- R. **Publicity.** The Contractor shall abide by the Rules of Professional Conduct for Attorneys at Law adopted by the Wyoming Supreme Court which relate or pertain to publicity regarding the legal services to be provided by the Contractor under this Contract.
- S. **Severability.** Should any portion of this Contract be judicially determined to be illegal or unenforceable, the remainder of the Contract shall continue in full force and effect, and either party may renegotiate the terms affected by the severance.
- T. **Governmental Immunity.** The City does not waive sovereign immunity by entering into this Contract and specifically retains all immunities and defenses available to it as a sovereign pursuant to applicable law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of sovereign immunity.
- U. **Construction of Contract.** The parties agree that any ambiguity in this Contract shall not be strictly construed, either against or for either party, except that any ambiguity as to sovereign immunity shall be construed in favor of sovereign immunity.
- V. **Taxes.** The Contractor shall pay all taxes and other such amounts required by federal, state, and local law, including but not limited to, federal and social security taxes, workers compensation, unemployment insurance, and sales taxes.
- W. **Termination of Contract.** This Contract may be terminated, without cause, by either party upon thirty (30) days written notice. This Contract may be terminated immediately for cause if the Contractor fails to perform in accordance with the terms and conditions of this Contract. Should the Contractor fail to perform in a manner consistent with the terms and conditions set forth in this Contract, payment under this Contract may be withheld until such time as the Contractor performs its duties and responsibilities.
- X. **Third Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Contract shall not be construed so as to create such status. The rights, duties, and obligations contained in this Contract shall operate only between the parties to this Contract and shall inure solely to the benefit of the parties to this Contract. The provisions of this Contract are intended only to assist the parties in determining and performing their obligations under this Contract.

Y. **Titles Not Controlling.** Titles of paragraphs are for reference only and shall not be used to construe the language in this Contract.

Z. **Waiver.** The waiver of any breach of any term or condition in this Contract shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.

9. **Signatures.** The parties to this Contract, either personally or through their duly authorized representatives, have executed this Contract on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Contract.

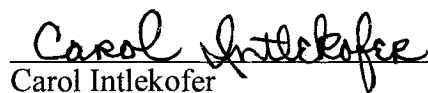
This Contract is not binding on either party until approved by the City. The effective date of this Contract is the date of the signature last affixed to this page.

CITY


Richard L. Kayser, Mayor

2/15/12
Date

Attest:


Carol Intlekofer

2/15/12
Date

CONTRACTOR


Associated Legal Group, LLC,
by: David G. Ditto

1/24/2012
Date